

		JustWorks also contains the employee’s wage statements and personnel file documents, including tax documents (such as a W-2), benefit plan documents, and others. Importantly, all of the documents that Plaintiff signed or that pertain to Plaintiff are stored on her JustWorks account and are accessible to her at her discretion. Given the above, the Court finds that the electronic signature has been sufficiently authenticated such that the electronic signature was an act of Plaintiff. Next, the Court finds that the Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment and therefore, contrary to Plaintiff’s argument, the Offer of Employment does not govern. The Arbitration Clause contained in the Worksite Employee Acknowledgment expressly states “This is the entire agreement between you, on the one hand, and Worksite Employer and/or Justworks, on the other hand, regarding dispute resolution, and this arbitration agreement supersedes any and all prior agreements regarding these issues. Any agreement contrary to the foregoing must be entered into, in writing, signed by you, the authorized representative of Worksite Employer and the CEO of Justworks.” This document was signed by Plaintiff on July 11, 2023 at 12:59 p.m. Thus, the Acknowledgment with the Arbitration Clause was signed after Plaintiff signed the offer of employment letter and supersedes any agreement to resolve disputes in the Court as Plaintiff argues. There is no ambiguity in the term that expressly state that the Worksite Employee Acknowledgment supersedes any prior agreements. The Court is not persuaded by Plaintiff’s argument that the Acknowledgment is illusory. The Court finds that the Arbitration Clause is binding and enforceable. The Court finds that the Arbitration Clause meets the requirements set forth in <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102, which holds that an <u>employment</u> arbitration agreement is lawful and therefore enforceable if it “(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum.” (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102.) Given the above, the Motion to Compel Arbitration is GRANTED and the action is STAYED. Accordingly, the discovery motions and related OSC re discovery referee are taken OFF CALENDAR. The Court sets an ADR Review hearing for October 1, 2026 at 10:30 a.m. in C34. Moving party to give notice.
5.	30-2024-0137003 Dib vs. Daher	1. Motion for Summary Judgment and/or Adjudication Plaintiffs Joseph Dib and R&R Life is Amazing (“Plaintiffs”) move for summary judgment against Defendant K&A Holdings, LLC as to the first cause of action for fraudulent transfers in violation of Civil Code section 3439.04, second cause of action for conspiracy to fraudulently convey property, third cause of action aiding and abetting fraudulent conveyance of property,

	fourth cause of action for accounting, and fifth cause of action for imposition of constructive trust and/or preliminary and permanent injunction, and account. Defendant K&A Holdings, LLC opposes the motion. In the motion, Plaintiffs present five issues. Each of the issues depends on facts deemed admitted in the Court’s 04/24/2025 Minute Order deeming requests for admission admitted by Defendant K&A Kingdom Holdings LLC. This order has been VACATED and therefore the requests for admission discussed and replied upon in the motion for summary judgment are no longer deemed admitted by Defendant K&A Holdings, LLC. Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if one material fact is disputable, then the issue fails. Such is the case here since at least some of the “undisputed material facts” in support of each issue presented in the motion and separate statement rely upon the facts deemed admitted in the Court’s 04/24/2025 Minute Order. The order deeming these facts admitted has been vacated and therefore the facts are no longer deemed admitted and are not “undisputed facts” that support Plaintiffs’ motion for summary judgment. As such, the Motion for Summary Judgment is DENIED without prejudice. Defendant to give notice.
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